

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDALL SCOTT SHOUP,

Petitioner

VS.

KATHERINE BUXTON REILLY,

Respondent

) Case Number: FDI-22-797054

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Randall Scott Shoup and Respondent Katherine Buxton Reilly.
- 2) On 5/26/26, Respondent filed a Request for Order seeking \$211,000 in Family Code section 2030 attorney's fees and costs. Respondent asserts a significant disparity in income and access to funds. Respondent states that to date she received \$24,812 in attorney's fees and costs from Petitioner.
- 3) On 5/26/26, Respondent filed an Income and Expense Declaration.
- 4) On 5/26/26, counsel for Respondent filed a declaration substantiating her request, which states the total attorney's fees and costs billed as of 4/30/26 is \$50,758 (plus a sum of \$6,000 not yet billed). Respondent requests attorney's fees and costs in the amount of \$161,000, forensic accounting fees in the amount of \$30,000 and expert construction consulting fees in the amount of \$20,000 for a total award of \$211,000.
- 5) On 5/26/26, Respondent filed a Memorandum of Points and Authorities.
- 6) On 5/26/26, Respondent filed Declaration of Lisa Jolicoeur in Support of Expert Fees and Costs.

1 7) On 6/10/26, Respondent filed Declaration of David Tillotson in Support of Attorney Fees and
2 Costs.

3 8) On 6/11/26, Respondent filed Notice of Association of Counsel.

4 9) On 7/29/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
5 Order. Respondent requests the Court deny Petitioner's request or reserve the issue for trial,
6 alleging that Respondent allowed significant waste to occur at the parties' marital residence in
7 breach of her fiduciary duty, which is the cause of increased fees.

8 10) On 7/29/26, Petitioner filed an Income and Expense Declaration which states Petitioner paid
9 approximately \$140,956 in attorney's fees and costs and \$30,000 in experts fees to date and still
10 owes \$1,092.

11 11) On 8/4/26, Respondent filed a Reply Declaration disputing Petitioner's claim and reiterating her
12 request for \$211,000 under Family Code section 2030.

13 12) On 8/4/25, counsel for Respondent filed a declaration substantiating her request, which states that
14 Respondent has incurred an additional \$17,218.75 in attorney's fees and \$2,962.80 in costs
15 through 7/31/26.

16 **B. Findings and Order**

17 1) Respondent's request for Family Code section 2030 attorney's fees is GRANTED in the amount
18 of \$105,500.

19 2) The Court finds an award of attorney's fees and costs is appropriate here because there is a
20 demonstrated disparity between the parties in access to funds to maintain counsel and in the
21 ability to pay for legal representation.

22 3) The Court further finds that Petitioner has or is reasonably likely to have the ability to pay for
23 legal representation for both parties.

24 4) \$105,500 in attorney's fees and costs is reasonable and necessary based on the facts and equities of
25 this case.

26 5) Petitioner shall pay \$26,375 to Respondent on the 1st of each month commencing 9/1/26 until
27 this balance is paid in full. No interest will accrue as long as payments are timely made.

28 6) Counsel for Respondent shall prepare the Findings and Order After Hearing.
29

1 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).